



File No.: EXP202410642

RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint registered on June 28, 2024, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: On June 28, 2024, a complaint was received by this Agency filed by A.A.A. (hereinafter, the complainant) against the DEPARTMENT OF SOCIAL RIGHTS AND WELL-BEING OF THE PRINCIPALITY OF ASTURIAS (hereinafter, the respondent) for not having properly addressed their right to the erasure of their personal data.

On May 9, 2024, the complainant exercised the right to erasure before the respondent.

Along with the complaint, the following documents were submitted:

- Exercise of the right to erasure of data to the Department of Social Rights and Well-being of the Principality of Asturias dated May 9, 2024
- Proof of submission at the Registration Office of the ***LOCALITY.1 on May 9, 2024, of that request for data erasure.

SECOND: In accordance with Article 65.4 of the LOPDGDD, the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The notification of the forwarding of the complaint, which was carried out in accordance with the provisions of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was made on July 23, 2024, as noted in the acknowledgment of receipt in the file.

No response has been received to this forwarding letter.

THIRD: The outcome of the forwarding procedure indicated in the previous Fact did not allow for the understanding that the complainant's claims were satisfied. Consequently, on September 28, 2024, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint for processing.

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The aforementioned agreement granted the respondent a hearing period, so that within ten working days, they could present any arguments they deemed appropriate.

The respondent has stated that

“(…) First.- The interested party, Mr. A.A.A., requests (…) before the then Department of Social Welfare and Housing, (…) by means of a Resolution from the Department of Social Welfare and Housing dated (…) 2013.

Second.- On December 12, 2022, a complaint from Mr. A.A.A. regarding the lack of attention to the request for the exercise of the right to erasure of data before the Department of Social Rights and Well-being was received by the Spanish Agency for Data Protection (hereinafter, AEDP).

Third.- By Resolution (…) from the Department of Social Rights and Well-being dated June 16, 2023 (notified to the complainant on June 27, 2023), the request made by Mr. A.A.A. regarding the exercise of the right to erasure of personal data was denied.

Fourth.- On June 29, 2023, the actions taken were communicated to the Spanish Agency for Data Protection, sending the corresponding documentation regarding the notification of the aforementioned Resolution.

Fifth.- In accordance with the provisions of Decree 22/2023, of July 31, from the President of the

Principality of Asturias restructuring the Departments that make up the Administration of the Principality of Asturias, the competencies related to (...) correspond to the Department of Health. Sixth.- On May 10, 2024 (with entry registration ENT20240466110), Mr. A.A.A. submitted, again, a letter addressed to the Department of Social Rights and Well-being requesting the erasure of his personal data and, in accordance with the provisions of the aforementioned Decree 22/2023, this entry was forwarded to the currently competent Department for processing the aforementioned request, that is, the Department of Health. However, this request was returned by the Department of Health to this Department on May 30, 2024.

Likewise, this Department forwarded the communication made by the AEPD regarding the complaint filed by Mr. A.A.A. and requested that, within a maximum period of one month, the response to the complaint and, if applicable, the actions taken in relation to it be communicated (entry registration number ENT2024738540).

Seventh.- On October 29, 2024, the AEPD notified a requirement to this Department (file No. EXP202410642 regarding the exercise of the right to erasure of data by Mr. A.A.A.) granting a period of fifteen working days to submit any arguments deemed appropriate and, if applicable, present the documents considered pertinent.

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However, and in accordance with the above, it can be concluded that the Department of Social Rights and Welfare currently lacks the competencies to process the new request for data deletion submitted by Mr. A.A.A., and that the relevant actions regarding this request must be carried out by the Department of Health; a circumstance that has been made evident in the corresponding official letter addressed to the AEPD. It provides a "Proof of Document Submission" dated November 15, 2024, addressed to the Spanish Agency for Data Protection.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Presidency of the Spanish Agency for Data Protection is competent to resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints submitted by a data subject and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission of the complaint regarding the exercise of the rights regulated in

Articles 15 to 22 of the GDPR, which gives rise to this procedure, the complaint was forwarded to the party being complained against for analysis, requiring a response to this Agency within one month and proof of having provided the complainant with the appropriate response.

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The result of this forwarding did not satisfy the claims of the complainant. Consequently, on September 28, 2024, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the complaint was admitted for processing. This admission for processing determines the opening of the present procedure for failure to address a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, which states:

"When the procedure refers exclusively to the failure to address a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the agreement of admission for processing was notified to the complainant. After this period, the interested party may consider their complaint accepted."

Article 58.2 of the GDPR grants the Spanish Agency for Data Protection a series of corrective powers to correct any infringement of the GDPR, including "ordering the controller or processor to address the requests for the exercise of the rights of the data subject under this Regulation."

III

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. These include the rights of access, rectification, deletion, objection, the right to restrict processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to the statements made in Recitals 59 and following of the GDPR. In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless they can demonstrate that they are unable to identify the data subject, and to express their reasons in case they do not intend to address such request. The burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

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IV

Right to Erasure

Article 17 of the GDPR, which regulates the right to erasure of personal data, establishes the following:

"1. The data subject shall have the right to obtain from the controller the erasure of personal data concerning them without undue delay, and the controller shall be obliged to erase the personal data without undue delay when one of the following circumstances applies:

- a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;
- b) the data subject withdraws consent on which the processing is based in accordance with Article 6(1)(a) or Article 9(2)(a), and where there is no other legal ground for the processing;
- c) the data subject objects to the processing pursuant to Article 21(1), and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing pursuant to Article 21(2);
- d) the personal data have been unlawfully processed;
- e) the personal data must be erased for compliance with a legal obligation in Union or Member State law to which the controller is subject;
- f) the personal data have been collected in relation to the offer of information society services referred to in Article 8(1).

2. When the controller has made the personal data public and is obliged, under paragraph 1, to erase such data, the controller, taking into account the available technology and the cost of implementation, shall take reasonable steps, including technical measures, to inform controllers that are processing the personal data of the data subject's request for erasure of any links to, or copies or replications of, those personal data.

3. Paragraphs 1 and 2 shall not apply to the extent that the processing is necessary:

- a) for exercising the right of freedom of expression and information;
- b) for compliance with a legal obligation which requires processing by Union or Member State law to which the controller is subject, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- c) for reasons of public interest in the area of public health in accordance with Article 9(2)(h) and (i), and paragraph 3;
- d) for archiving purposes in the public interest, scientific or historical research purposes or statistical purposes in accordance with Article 89(1), insofar as the right referred to in paragraph 1 is likely to make impossible or seriously impair the achievement of the objectives of that processing, or
- e) for the establishment, exercise or defense of legal claims."

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V

Conclusion

In this case, it has been established that the complainant requested the erasure of their personal data from the respondent.

During the processing of this procedure, the respondent has responded to this Agency, recounting the facts related to a request for erasure by the complainant that was denied by Resolution of the Honorable Counselor of Social Rights and Welfare dated June 16, 2023.

Regarding the right to erasure whose claim has given rise to this procedure, the respondent states that "(...) this entry was referred to the competent department currently for the processing of the aforementioned request, that is, the Department of Health. However, this request was returned by the Department of Health to this Department on May 30, 2024."

However, there is no evidence that allows for the consideration that they have expressly responded to the complainant, addressing the exercised right or denying it with justification, as established by Article 12.4 of the LOPDGDD.

Thus, it cannot be accepted that the response that corresponds to be given can be manifested on the occasion of a mere administrative procedure, such as the submission of allegations regarding this procedure, initiated precisely for not properly addressing the request in question.

The aforementioned rules do not allow for the request to be overlooked as if it had not been raised, leaving it without the response that the controllers are obliged to issue, even in cases where there are

no data in the files or even in those cases where the requirements are not met, in which case the recipient of such a request is also obliged to require the correction of the observed deficiencies or, where appropriate, to deny the request with justification indicating the reasons why the right in question cannot be considered.

Therefore, the request made obliges the controller to provide an express response in any case, using any means that justifies the receipt of the response.

Given that no copy of the necessary communication that must be directed to the complainant informing them about the decision made regarding the request to exercise rights is attached, it is appropriate to uphold the complaint that originated this procedure.

In light of the cited provisions and other generally applicable regulations, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the complaint made by A.A.A. considering that Article 17 of the GDPR has been infringed and to urge the DEPARTMENT OF SOCIAL RIGHTS AND WELFARE OF THE PRINCIPALITY OF ASTURIAS with NIF S3333001J, to, within ten working days following the notification,

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of this resolution, send to the claiming party a certification addressing the requested right or denying it with justification, indicating the reasons why the request cannot be granted, in accordance with the provisions established in the body of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same timeframe. Non-compliance with this resolution could result in the commission of an infringement of art. 83.6 of the GDPR, classified as very serious for the purposes of prescription in article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with art. 58.2 of the GDPR.

SECOND: NOTIFY this resolution to A.A.A. and to the DEPARTMENT OF SOCIAL RIGHTS AND WELL-BEING OF THE PRINCIPALITY OF ASTURIAS.

In accordance with the provisions of article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with art. 48.6 of the LOPDGDD, and in accordance with the provisions of article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law.

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